
OPINION

JULIA SMITH GIBBONS, Circuit Judge. Bretton Westmoreland was arrested and detained at the Butler County Jail, where he was attacked by another detainee for being a “snitch.” Westmoreland sued the jail and Rocky Tyree, an employee, for failure to protect under 42 U.S.C. § 1983. The district court granted summary judgment to the Butler County Jail and Tyree, holding that because Westmoreland did not suffer a constitutional violation, Tyree was entitled to qualified immunity and the jail could not be held liable. Westmoreland appeals, arguing the district court used the incorrect test to evaluate his claim. Because our court recently determined that *Kingsley v. Hendrickson*, 576 U.S. 389 (2015), requires modification of the subjective prong of the deliberate indifference test for pretrial detainees, we vacate the district court’s grant of summary judgment and remand Westmoreland’s claims for proceedings consistent with *Brawner v. Scott County, Tennessee*, 14 F.4th 585 (6th Cir. 2021).

I

On May 27, 2018, Defendant Butler County Jail (“BCJ”) booked Plaintiff Bretton Westmoreland on an active bench warrant for failure to appear. During the booking process, Westmoreland signed a document acknowledging he received and understood the rules of BCJ and his rights as an inmate—including the process to request separation from other inmates if he felt threatened. That same day, Westmoreland requested to be separated from fellow inmate Jerry St. Clair. Westmoreland indicated that he knew St. Clair was currently incarcerated at BCJ and that St. Clair believed he was a government informant. BCJ documented this request for separation, and Westmoreland was assigned to a multi-occupancy general population dormitory with six cellmates that did not share common area with St. Clair.

One week later, around 6:21 P.M. on June 3, 2018, Westmoreland called his mother, Tanya Arnold Sublett, and expressed his concerns that St. Clair was telling other inmates Westmoreland had “told on him.” DE 26-2, Defs.’ Mot. Summ. J., Page ID 196. The next day, St. Clair was permitted to mop floors outside of Westmoreland’s cell. Around 12:22 P.M.,

Westmoreland called Sublett again and told her that St. Clair was near Westmoreland's dormitory and was telling Westmoreland's cellmates that he was a "rat." *Id.* at 196–97. Westmoreland claimed his cellmates became "rowdied up" after hearing this, and one inmate in particular—Ricky Mullikan—became mad. DE 29, Pl.'s Resp. Defs.' Mot. Summ. J., Page ID 243.

After Westmoreland conveyed this information to his mother, Sublett called BCJ and spoke with Tara McMillin, the jail's Class D Coordinator. McMillin worked in the administrative office preparing home and rehab placements for inmates. McMillin testified that Sublett informed her something was going on between Westmoreland and St. Clair, and she was concerned about Westmoreland's well-being in his cell. McMillin checked Westmoreland's records and confirmed that he and St. Clair were housed in separate cells. McMillin completed an incident report about the phone call, wrote down Sublett's phone number, and gave a note to her supervisor, Tyree. In the incident report, McMillin wrote: "I spoke with Jailer Rocky Tyree and explained the issue. I gave him a sticky note with [Sublett's] phone number and asked him to call her." DE 29, Pl.'s Resp. Defs.' Mot. Summ. J., Page ID 245.

Tyree claimed he had spoken to Westmoreland approximately fifteen minutes before McMillin informed him of Sublett's phone call. He stated their conversation lasted for five minutes and occurred in the bullpen, during which he asked Westmoreland directly if he wanted to be moved out of his cell. Tyree claims that Westmoreland replied "No, I'm fine." DE 26-2, Defs.' Mot. Summ. J., Page ID 198. Westmoreland, however, denied having any conversation with Tyree about being moved from the cell. Tyree stated that because he had spoken with Westmoreland, who did not want to be moved, he felt he did not need to follow up on Sublett's phone call. Westmoreland called Sublett again in the afternoon of June 4, and she told him that she had called the jail and Tyree would "take care of everything." DE 29, Pl.'s Resp. Defs.' Mot. Summ. J., Page ID 247.

Around 6:00 P.M. on June 4, 2018, Westmoreland asked Deputy Jesse Kidd if he could be moved. Kidd's incident report indicates that Westmoreland made the request because "he couldn't stand to be in the cell with the other inmates and that they were getting on his nerves." DE 26-2, Defs.' Mot. Summ. J., Page ID 199. Kidd told Westmoreland that the jail did not move

inmates just because they dislike their cellmates and prepared a report documenting the conversation. Westmoreland stated that when he spoke to Kidd, he asked to be moved because he “felt like [his cellmates] were going to do something to [him].” DE 29, Pl.’s Resp. Defs.’ Mot. Summ. J., Page ID 247.

Westmoreland testified that things escalated after dinner, when other inmates were egging on Millikan and turning up music. Between 6:00 P.M. and midnight, BCJ deputies visited Westmoreland’s dormitory on seven occasions to monitor the inmates. Sometime after midnight, the other inmates shut off the lights, turned up the television, and closed the door. Westmoreland sat on a cooler to see everything, and when he turned to speak with another inmate, Mullikan attacked him from behind. Westmoreland testified that he stood up to defend himself, but two other inmates pushed him away so that Mullikan could strike him again. Mullikan struck Westmoreland with his fist and knocked Westmoreland unconscious. Westmoreland recalled waking up when a guard came into the cell, and the other inmates informed the guard that Westmoreland had slipped in the shower. Westmoreland was reluctant to disclose he had been attacked and initially told Tyree he had fallen in the shower before acknowledging that he had been assaulted by another inmate.

A guard took Westmoreland to the jail’s nurse, who examined him, cleaned out his mouth, and stated that Tyree needed to be informed. After Tyree arrived, the nurse and Tyree took Westmoreland to the Ohio County Hospital emergency room, where the hospital determined his jaw was broken and referred him to an oral surgeon. Westmoreland was returned to BCJ and placed in a three-man cell. Westmoreland had two surgeries for his injury: braces and a plate were installed, and his jaw was wired shut for seven to eight months while he subsisted on a liquid diet. He still experiences numbness from the midline of his chin to the mid-right side of his jaw, and his face pops and causes pain while eating.

Westmoreland filed suit against Tyree, McMillin, Kelli Fugate (the Chief Administrative Deputy at BCJ), and BCJ (collectively “Defendants”) asserting claims for failure to protect, in violation of the Eighth and Fourteenth Amendments and 42 U.S.C. § 1983; negligence and gross negligence under Kentucky law; and a violation of Ky. Rev. Stat. § 441.045(3) for allegedly releasing him to avoid paying his medical bills. Following discovery, Defendants moved for

summary judgment. Westmoreland voluntarily dismissed his claims against McMillin and Fugate.

The district court applied a two-part deliberate indifference test to determine whether Tyree was entitled to qualified immunity and granted Defendants' motion for summary judgment. The court held that under the objective component of the deliberate indifference failure-to-protect claim, Westmoreland established he faced a substantial risk of harm because he had been identified as a snitch, and he subsequently suffered physical harm during an attack. However, under the subjective component, the court held Westmoreland failed to show Tyree knew of the substantial risk of harm. Because Tyree was not deliberately indifferent, the court held Westmoreland did not suffer a constitutional violation and Tyree was entitled to qualified immunity. The district court also granted summary judgment to BCJ, holding that a municipality cannot be liable absent an underlying constitutional violation. Finally, the court dismissed Westmoreland's state law claims without prejudice, declining to exercise its discretionary pendent jurisdiction over state law claims filed in connection with and arising out of the same facts as his § 1983 claim.

II

The district court's grant of summary judgment is reviewed de novo. *Equitable Life Assur. Soc'y of the United States v. Poe*, 143 F.3d 1013, 1015 (6th Cir. 1998). We will affirm the district court if the record "shows that there is no genuine dispute as to any material fact and that the movant is entitled to judgment as a matter of law." Fed. R. Civ. P. 56(a). "[W]e view the factual evidence in the light most favorable to the nonmoving party, and draw all reasonable inferences in that party's favor." *Burwell v. City of Lansing, Mich.*, 7 F.4th 456, 462 (6th Cir. 2021) (citation omitted).

III

Qualified immunity shields government actors from civil liability under 42 U.S.C. § 1983 if "their conduct does not violate clearly established statutory or constitutional rights of which a reasonable person would have known." *Harlow v. Fitzgerald*, 457 U.S. 800, 818 (1982). To determine whether an officer is entitled to qualified immunity, a court must evaluate two

independent questions: (1) whether the actor’s conduct violated a constitutional right, and (2) whether that right was clearly established at the time of the incident. *Pearson v. Callahan*, 555 U.S. 223, 232 (2009).

The Eighth Amendment provides an inmate the right to be free from cruel and unusual punishment. U.S. Const. amend. VIII. The Supreme Court has established that “prison officials have a duty . . . to protect prisoners from violence at the hands of other prisoners.” *Farmer v. Brennan*, 511 U.S. 825, 833 (1994) (citation omitted). “It is not, however, every injury suffered by one prisoner at the hands of another that translates into constitutional liability for prison officials responsible for the victim’s safety.” *Id.* at 834. A prison official violates an inmate’s rights only if the official is “deliberate[ly] indifferen[t] to inmate health or safety.” *Id.* (internal quotation marks and citation omitted). A deliberate indifference claim under the Eighth Amendment has an objective and a subjective component. *Richmond v. Huq*, 885 F.3d 928, 937–38 (6th Cir. 2018). Under the objective component, “[f]or a claim . . . based on a failure to prevent harm, the inmate must show that he is incarcerated under conditions posing a substantial risk of serious harm.” *Farmer*, 511 U.S. at 834. The subjective component requires an inmate to show that the individual defendants (1) were “aware of facts from which the inference could be drawn that a substantial risk of serious harm exists”; (2) actually drew the inference; and (3) consciously disregarded the risk. *Id.* at 837, 839; *Mangum v. Repp*, 674 F. App’x 531, 537 (6th Cir. 2017).

The Due Process Clause of the Fourteenth Amendment provides the same protections to pretrial detainees. See *Richko v. Wayne Cnty., Mich.*, 819 F.3d 907, 915 (6th Cir. 2016). This court has “historically analyzed Fourteenth Amendment pretrial detainee claims and Eighth Amendment prisoner claims ‘under the same rubric.’” *Richmond*, 885 F.3d at 937 (quoting *Villegas v. Metro. Gov’t of Nashville*, 709 F.3d 563, 568 (6th Cir. 2013)). Westmoreland argues, however, that a pretrial detainee’s failure-to-protect claim should be governed by a test of objective unreasonableness because the Supreme Court’s decision in *Kingsley v. Hendrickson*, 576 U.S. 389 (2015), eliminates the subjective element of a deliberate indifference claim.

In *Kingsley*, the Court held that, in an excessive-force claim, a pretrial detainee must show only that the officers’ use of force was *objectively* unreasonable and need not show the

officers were subjectively aware their use of force was unreasonable. 576 U.S. at 391–92. In holding that the appropriate standard is objective, the Court reiterated the principle that pretrial detainees’ constitutional status differs from that of convicted prisoners. *Id.* at 397–98, 400. *Kingsley* did not, however, address whether an objective standard applies in other Fourteenth Amendment pretrial detainment contexts.

Following the Court’s decision in *Kingsley*, a circuit split emerged: The Second, Seventh, and Ninth Circuits held *Kingsley* required modification of the subjective component for pretrial detainees bringing Fourteenth Amendment deliberate-indifference claims. See *Darnell v. Pineiro*, 849 F.3d 17, 34–35 (2d Cir. 2017) (deliberate indifference to conditions of confinement); *Miranda v. Cnty. of Lake*, 900 F.3d 335, 352 (7th Cir. 2018) (deliberate indifference to an inmate’s serious medical needs); *Gordon v. Cnty. of Orange*, 888 F.3d 1118, 1124–25 (9th Cir. 2018) (deliberate indifference to decedent’s health or safety). By contrast, the Fifth, Eighth, Tenth, and Eleventh Circuits retained the subjective component for deliberate-indifference Fourteenth Amendment claims. See *Cope v. Cogdill*, 3 F.4th 198, 207 & n.7 (5th Cir. 2021) (concluding in a footnote that the court is bound by prior precedent applying a subjective component); *Whitney v. City of St. Louis*, 887 F.3d 857, 860 n.4 (8th Cir. 2018) (reasoning that “*Kingsley* does not control because it was an excessive force case, not a deliberate indifference case”); *Dang by & through Dang v. Sheriff, Seminole Cnty.*, 871 F.3d 1272, 1278 n.2 (11th Cir. 2017) (explaining “[w]e cannot and need not reach this question” because *Kingsley* does not squarely conflict with prior precedent and reasoning that, in any event, the plaintiff had established only negligence, which is still insufficient under *Kingsley*); *Strain v. Regalado*, 977 F.3d 984, 991 (10th Cir. 2020) (“We decline to extend *Kingsley* to Fourteenth Amendment deliberate indifference claims.”).

Our court directly confronted the matter in *Brawner v. Scott County, Tennessee*, 14 F.4th 585 (6th Cir. 2021), *reh’g en banc denied*, 18 F.4th 551 (6th Cir. 2021). In *Brawner*, we “agree[d] with the Second, Seventh, and Ninth Circuits that *Kingsley* requires modification of the subjective prong of the deliberate-indifference test for pretrial detainees.” *Id.* at 596. In reaching this decision, the court reviewed the history of the deliberate-indifference test, noting that in *Farmer*, the Supreme Court adopted the subjective component of the test for deliberate

indifference under the Eighth Amendment *based on the language and purposes of that amendment*, focusing particularly on “punishments.” *Id.* at 594–96 (citing *Farmer*, 511 U.S. at 835–36; 37–38; 40). We held that *Kingsley* presented a “clear delineation between claims brought by convicted prisoners under the Eighth Amendment and claims brought by pretrial detainees under the Fourteenth Amendment,” and, accordingly, “applying the same analysis to these constitutionally distinct groups is no longer tenable.” *Id.* at 596.

Judge Readler wrote in partial dissent from the *Browner* majority that whether the deliberate indifference framework governs pretrial detainees’ claims after *Kingsley* should not have been decided because it was unnecessary to the outcome of the case. *Browner*, 14 F.4th at 603–05 (Readler, J., concurring in part and dissenting in part). Judge Readler argued that *Browner*’s extension of *Kingsley* to deliberate indifference claims should be considered dictum. *Id.* at 604. However, as recently noted in *Greene v. Crawford County, Michigan*, “[t]he *Browner* majority expressly considered and rejected the suggestion that its extension of *Kingsley* was dictum” and “[w]e are bound by that decision.” 22 F.4th 593, 607 (6th Cir. 2022).

Following *Browner*, a pretrial detainee establishes deliberate indifference by proving “more than negligence but less than subjective intent—something akin to reckless disregard.” *Browner*, 14 F.4th at 596–97 (quoting *Castro v. Cnty. of L.A.*, 833 F.3d 1060, 1071 (9th Cir. 2016) (en banc)). A defendant must have acted deliberately (not accidentally) and recklessly “in the face of an unjustifiably high risk of harm that is either known or so obvious that it should be known.” *Id.* at 596 (quoting *Farmer*, 511 U.S. at 836). In *Farmer*, the Supreme Court “noted that recklessness could be defined according to an objective standard akin to that used in the civil context, which would not require proof of an official’s actual awareness of the harms associated with the challenged conditions.” *Darnell*, 849 F.3d at 32.

Here, the district court analyzed Westmoreland’s claims against Tyree and BCJ under the Eighth Amendment deliberate indifference standard with both an objective and a subjective prong. The district court rejected Westmoreland’s argument that *Kingsley* changed the standard from deliberate indifference to “objective unreasonableness,” noting the Sixth Circuit had not yet adopted either view in the existing circuit split on the issue. But our Circuit has now explicitly taken the position that a failure-to-protect claim by a pretrial detainee requires only an objective

showing that an individual defendant acted (or failed to act) deliberately and recklessly. *Browner*, 14 F.4th at 596.

Browner did not address the application of this standard to individual officers, however, as the county was the only remaining party in that case. Our court has not yet applied the objective standard to a failure-to-protect claim against an individual officer, but it has done so for claims against individual officers for deliberate indifference to an inmate’s serious medical needs. See *Greene*, 22 F.4th at 609–14; *Britt v. Hamilton Cnty., et al.*, 2022 WL 405847, at *3 (6th Cir. Feb. 10, 2022); *Hyman v. Lewis*, --- F.4th ---, 2022 WL 682543, at *2 (6th Cir. Mar. 8, 2022). Other circuits have applied the objective standard to a pretrial detainee’s failure-to-protect claim against an individual officer. In *Castro*, the en banc Ninth Circuit applied *Kingsley*’s principles to a pretrial detainee’s Fourteenth Amendment failure-to-protect claim against an individual officer. 833 F.3d at 1071. The Ninth Circuit explained that to meet the standard of “reckless disregard,” the following elements must be met:

- (1) The defendant made an intentional decision with respect to the conditions under which the plaintiff was confined;
- (2) Those conditions put the plaintiff at substantial risk of suffering serious harm;
- (3) The defendant did not take reasonable available measures to abate that risk, even though a reasonable officer in the circumstances would have appreciated the high degree of risk involved—making the consequences of the defendant’s conduct obvious; and
- (4) By not taking such measures, the defendant caused the plaintiff’s injuries.

833 F.3d at 1071. Regarding the third element, the Ninth Circuit held that a “defendant’s conduct must be objectively unreasonable, a test that will necessarily turn on the facts and circumstances of each particular case.” *Id.* (citing *Kingsley*, 576 U.S. at 397 (internal quotations and citations omitted)). The first, second, and fourth elements of this test match the objective prong of the failure-to-protect claim. See *Farmer*, 511 U.S. at 834. The third element parallels the subjective component of the failure-to-protect claim outlined in *Farmer*, but with updated language to comport with the objectiveness required by *Kingsley*. The Seventh Circuit has also applied *Kingsley* in the failure-to-protect context, holding that a subjective requirement “cannot be reconciled with *Kingsley*’s language, reasoning, and reminder to ‘pay careful attention to the

different status of pretrial detainees.” *Kemp v. Fulton Cnty.*, 27 F.4th 491 (7th Cir. 2022). Like the Ninth and Seventh Circuits, and following our own circuit’s post-*Kingsley* line of cases, we hold that a defendant officer must act intentionally in a manner that puts the plaintiff at substantial risk of harm, without taking reasonable steps to abate that risk, and by failing to do so actually cause the plaintiff’s injuries.

As applied to Westmoreland’s claim: First, Tyree made an intentional decision as to Westmoreland’s conditions of confinement. When Westmoreland’s mother, Sublett, called BCJ and informed McMillin that she thought her son was in danger, McMillin wrote down Sublett’s phone number, gave it to Tyree, and asked him to call Sublett. There is a factual dispute about whether Tyree spoke to Westmoreland about being moved. Whether Tyree spoke to Westmoreland or not, he was advised by McMillin that Sublett had concerns about Westmoreland’s well-being and he determined Westmoreland did not need to be moved. This is an intentional decision about Westmoreland’s conditions of confinement, meeting the first element of the objective test.

As to the second element, whether the conditions of confinement put Westmoreland at substantial risk of suffering serious harm, we have recognized that being identified as a “snitch” in prison puts an inmate at substantial risk of assault. *See Comstock v. McCrary*, 273 F.3d 693, 699 n.2 (6th Cir. 2001) (acknowledging a prison psychologist’s statement that “a prisoner in prison definitely doesn’t want to be labeled a snitch, that’s probably the worst label that you . . . could have put on you if you were in prison” (citation omitted)). In *Dale v. Poston*, 548 F.3d 563, 569–70 (7th Cir. 2008), the Seventh Circuit addressed the inherent risk faced by snitches in prison. The plaintiff sued several prison employees, claiming they violated the Eighth Amendment by failing to protect him from an attack by another inmate after he was labeled a snitch, and the court noted it is “common knowledge that snitches face unique risks in prison.” *Id.* Here, Westmoreland has established this element by showing that St. Clair identified him as a “rat” in front of his cellmates, DE 29, Pl.’s Resp. Defs.’ Mot. Summ. J., Page ID 242, and informed other inmates that Westmoreland had “told on him.” DE 26-2, Defs.’ Mot. Summ. J., Page ID 196.

The third element of a pretrial detainee's failure-to-protect claim against an individual officer is that the defendant did not take reasonable available measures to abate the substantial risk of serious harm, even though a *reasonable* officer in the circumstances would have appreciated the high degree of risk involved and the obvious consequences of the defendant's conduct. This prong incorporates *Kingsley*'s holding that "the relevant standard is objective not subjective." 576 U.S. at 395. A pretrial detainee need not prove subjective elements about an officer's actual awareness of the level of risk, but he must prove the officer was more than merely negligent; the officer must have acted with "reckless disregard" in the face of "an unjustifiably high risk of harm." *Browner*, 14 F.4th at 596 (quoting *Farmer*, 511 U.S. at 836).

The district court analyzed Westmoreland's claim using the deliberate indifference test. Although the court held that under the objective prong of a failure-to-protect claim, Westmoreland successfully showed he was incarcerated under conditions posing a substantial risk of serious harm, it found his claim failed at the subjective prong because Tyree "did not possess sufficient knowledge based on [Sublett's] message to infer a substantial risk of harm existed." DE 31, Op., Page ID 292. The district court must analyze Westmoreland's claim under the objective unreasonableness standard outlined in this third element, viewing the facts in the light most favorable to Westmoreland, and determine whether the record is sufficient for a jury to conclude that Tyree was deliberately indifferent to Westmoreland's substantial risk of serious harm. If summary judgment is improper as to Tyree, the court must also address the issue of qualified immunity. See *Burwell*, 7 F.4th at 476.

The fourth element is whether the defendant caused the plaintiff's injuries by not taking reasonable measures. Westmoreland established this element by showing he suffered physical harm as a result of being labeled a snitch after St. Clair identified him as a "rat" in front of his cellmates; his mother, Sublett, called BCJ to ask that actions be taken to protect Westmoreland; Westmoreland was not moved away from his cellmates; and he subsequently suffered a broken jaw and lingering issues as a result of an attack by his cellmate.

We vacate the district court’s grant of summary judgment because the analysis of whether Tyree was deliberately indifferent should be solely an objective consideration.¹ The outcome of this analysis is necessary to determine whether Tyree violated a clearly established constitutional right, or whether he is entitled to qualified immunity. In turn, whether BCJ is liable for Tyree’s actions is contingent on whether a constitutional violation occurred. Under *Monell*, a municipality can be liable under § 1983 when an official “policy or custom” caused a violation of the plaintiff’s constitutional rights. *Monell v. Dep’t of Soc. Serv.*, 436 U.S. 658, 694–95 (1978). “If no constitutional violation by the individual defendants is established, the municipal defendants cannot be held liable under § 1983.” *Watkins v. City of Battle Creek*, 273 F.3d 682, 687 (6th Cir. 2001) (citation omitted). Accordingly, Westmoreland’s claim against BCJ must be addressed after the district court analyzes the claim against Tyree pursuant to the new standard. The district court exercised its discretion to dismiss Westmoreland’s pendent state law claims under 28 U.S.C. §1367(c) after it granted summary judgment on the federal claims. As we vacate the grant of summary judgment on the federal claims, we also vacate the dismissal of the state law claims—our normal practice in this setting. *See Hale v. Boyle Cnty.*, 18 F.4th 845, 855 (6th Cir. 2021) (per curiam).

IV

We vacate the district court’s grant of summary judgment and remand Westmoreland’s claims for proceedings consistent with our holding that the deliberate indifference test in a pretrial detainee’s failure-to-protect claim is an objective determination.

¹In this conclusion, we are cognizant of the district court’s role and the need to consider all the evidence and make all reasonable inferences in the light most favorable to Westmoreland.